(g) *Inspection and accounting.* Property shall be controlled in accordance with accepted or prescribed methods of accounting, identification, and administrative responsibility. FCDA representatives shall have access to the property at all reasonable times for purposes of inspection. They shall also be granted ready access to the books and records of the State and local governments relating to such property.

§ 1702.8 *Breach of condition of donation or failure to comply.* Eligible donees under the regulations in this part shall comply with all conditions of the donation of the surplus property for civil defense purposes as set forth in the regulations in this part. Upon report of breach of any term or condition to the Federal Civil Defense Administrator, from the Department of HEW, a state agency, or any other source with respect to items donated under the regulations in this part, the FCD Administrator will:

(a) Cause to be made a prompt investigation of the breach of condition or failure to comply.

(b) Make a determination as to whether a breach of condition has in fact been made, or that there is a failure to comply with the regulations in this part.

(c) Upon a determination that there has been a breach of condition or failure to comply, notify the state civil defense director, or his designee, of such breach and the measure required to rectify the breach or to comply with the regulations in this part.

(d) Assure that measures required to rectify the breach are taken; and, upon failure to comply, notify the State that the donee will no longer be eligible for the purposes of receiving property donated under the regulations in this part, and take such other steps as may be reasonably necessary under applicable statutes, or the regulations in this part, including civil or criminal prosecution where applicable.

(e) The FCDA will take necessary steps to see that state civil defense directors and the state agency designated for the acquisition and disposal of federal surplus personal property under the regulations in this part are fully informed of all steps taken in this compliance program.

§ 1702.9 *Property eligible for donation for civil defense purposes.* The Administrator will issue, and revise from time to time, representative lists of categories of surplus property usable and necessary for donation under the regulations in this part for civil defense purposes. The allocation of surplus property for donation for civil defense purposes by the Department of HEW and the certification by State agencies of the need and usability of such surplus property which falls within the requirements of an approved State civil defense plan shall be based upon these lists. Property requested by an appropriate civil defense organization which is not included on these lists must be fully justified, based upon the State or local civil defense plan, and approved by the State Civil Defense Director. The request shall be forwarded to the appropriate FCDA Regional Administrator, who will forward it with his recommendations, for the revision of the lists of categories of donable surplus property as established by the Administrator.

§ 1702.10 *Criteria to be observed in the allocation and distribution of surplus property to civil defense organizations.* (a) The Department of HEW will observe the following criteria in the allocating of surplus property as between regions and states for civil defense purposes:

(1) Areas in greatest need of the type of property under consideration.

(2) Replacement for civil defense property damaged, destroyed or consumed as a result of a major natural disaster.

(3) Location, conditions and transportability of property.

(4) The distance, considering transportation costs, beyond which property cannot be economically shipped.

(5) Such other criteria as the Administrator or the Department of HEW may from time to time promulgate.

(b) State agencies will observe the following criteria in the distribution of surplus property to eligible civil defense organizations:

(1) Areas in greatest need of the type of property under consideration.

(2) Civil defense training needs.

(3) Replacement for civil defense property damaged, destroyed or consumed as a result of a major natural disaster.

(4) Location, conditions and transportability of property.

(5) Ability of civil defense organizations to accept property.

(6) Availability to civil defense organizations of funds to handle, maintain, or warehouse.

(7) The quantity of property of a given type which has already been received by the civil defense organizations.

(8) The distance, considering transportation costs, beyond which property cannot be economically shipped.

(9) Where no priority is developed as a result of the above allocating factors, allocations will be made on the basis of civil defense needs as determined by the Administrator.

(10) Such other criteria as the Administrator or the Department of HEW may from time to time promulgate.

Effective date. The regulations in this part shall be effective as of November 1, 1956.

[SEAL] VAL PETERSON,
Administrator.

[F. R. Doc. 56-9483; Filed, Nov. 19, 1956; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1363]

[Arizona 011738]

ARIZONA

RESERVING LANDS FOR USE OF THE FOREST SERVICE FOR RESEARCH PURPOSES; REVOKING EXECUTIVE ORDERS NO. 4261 OF JULY 3, 1925 AND NO. 4602 OF MARCH 2, 1927

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473), section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Arizona are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws, and reserved for use of the Forest Service, Department of Agriculture, as part of the Santa Rita Experimental Range, in connection with research projects being conducted in furtherance of the act of May 22, 1928 (45 Stat. 699; 16 U. S. C. 581, 581a–581k) as amended:

GILA AND SALT RIVER MERIDIAN

T. 18 S., R. 13 E.,
Secs. 24, 25, and 36.
T. 18 S., R. 14 E.,
Secs. 29, 30, 31, and 32;
Sec. 33, SW¼.
T. 19 S., R. 14 E.,
Secs. 4, 5, 6, 9, 15, and 16;
Sec. 10, S½ and NW¼;
Sec. 22, E½NE¼ and NE¼SE¼.
T. 17 S., R. 15 E.,
Secs. 33 and 34.
T. 18 S., R. 15 E.,
Sec. 3;
Sec. 4, N½ and SE¼.
In Coronado National Forest.
T. 19 S., R. 15 E.,
Sec. 19, W½W½ and NE¼;
Sec. 20, W½SW¼;
Sec. 29, W½NW¼ and SW¼;
Sec. 30, N½NE¼, SE¼NE¼, and NE¼NW¼;
T. 20 S., R. 15 E. (unsurveyed),
Sec. 5, NW¼NW¼.

The areas described aggregate 11,287.48 acres, including 751.04 acres of national forest lands.

Executive Orders No. 4261 of July 3, 1925 and No. 4602 of March 2, 1927, withdrawing public lands for use of the Department of Agriculture as an addition to a range experiment station are hereby revoked. The lands released by this paragraph aggregating 10,536.44 acres, are outside the Coronado National Forest and are withdrawn by paragraph 1 of this order.

This order shall take precedence over but not otherwise affect existing withdrawals of the lands for national forest

purposes, so far as it affects any of the lands.

FRED G. AANDAHL,
Acting Secretary of the Interior.

NOVEMBER 14, 1956.

[F. R. Doc. 56-9458; Filed, Nov. 19, 1956; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 6-10.]

PART 6—INTERNATIONAL FIXED PUBLIC RADIOCOMMUNICATION SERVICES

EDITORIAL CHANGE

The Commission having under consideration the desirability of making certain editorial changes in Part 6 of its rules and regulations; and

It appearing that by previous Commission Order adopted June 13, 1956, Docket No. 10821, §§ 6.101 through 6.603 have been superseded by new Part 21, Domestic Public Radio Services (other than Maritime Mobile), and that, as a result, the remaining sections of this part relate primarily to International Fixed Public Radiocommunication Services;

It further appearing that the amendment adopted herein is editorial in nature, and, therefore, prior publication of Notice of Proposed Rule Making under the provisions of section 4 of the Administrative Procedure Act is unnecessary, and the amendment may become effective immediately; and

It further appearing that the amendment adopted herein is issued pursuant to authority contained in sections 4 (1), (5) (d) (1) and 303 (r) of the Communications Act of 1934, as amended, and section 0.341 (a) of the Commission's Statement of Organization, Delegations of Authority and Other Information;

It is ordered, This 15th day of November 1956, that, effective November 21, 1956, the title of Part 6 is amended to read: Part 6—International Fixed Public Radiocommunication Services.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies secs. 5, 303, 48 Stat. 1068, as amended, 1082, as amended; 47 U. S. C. 155, 303)

Released: November 15, 1956

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-9502; Filed, Nov. 19, 1956; 8:53 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[43 CFR Part 244]

USE OF PUBLIC-LAND RIGHTS-OF-WAY

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that pursuant to the authority vested in the Secretary of the Interior by Revised Statutes 2478 (43 U. S. C. 1201), it is proposed to issue regulations setting forth the rules governing the use by third parties of rights-of-way granted by the Department of the Interior pursuant to the regulations of 43 CFR Part 244.

The proposed regulations are set forth below.

Interested persons may submit in triplicate written comments, suggestions, or objections with respect to the proposed regulations to the Bureau of Land Management, Washington 25, D. C., within thirty days from the date of publication of this notice in the FEDERAL REGISTER.

FRED G. AANDAHL,
Acting Secretary of the Interior.

NOVEMBER 14, 1956.

The title to § 244.18 is revised as shown below, the present text is designated as paragraph (a), and a new paragraph (b) is added to read as follows:

§ 244.18 *Transfer of right-of-way; use by third parties.* * * *

(b) Unless otherwise provided by the regulations of this part, the holder of a right-of-way may not permit a third party to use that right-of-way in whole or in part, or the facilities constructed pursuant thereto, if such use would substantially alter the right granted, resulting in a different servitude from that contemplated by the original grant. Where a third party desires such use, he must make application for a separate right-of-way in accordance with, and subject to, the regulations of this part. The new easement, if granted, will be subordinate to the existing valid rights of the holder of the prior easement. The use by the holder of the subordinate easement of the facilities owned by the holder of the prior easement will be a matter of agreement between the two grantees and such agreement should not be submitted to the Bureau of Land Management.

[F. R. Doc. 56-9459; Filed, Nov. 19, 1956; 8:45 a. m.]

NOTICES

DEPARTMENT OF COMMERCE

Office of the Secretary

CHARLES M. STUART

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of May 5, 1956, 21 F. R. 3030.

A. Deletions: no change.
B. Additions: no change.

This statement is made as of October 27, 1956.

Dated: October 27, 1956.

CHARLES M. STUART.

[F. R. Doc. 56-9475; Filed, Nov. 19, 1956; 8:49 a. m.]

JACK H. SMITH

REPORT OF APPOINTMENT AND STATEMENT OF FINANCIAL INTERESTS

Report of appointment and statement of financial interests required by section 710 (b) (6) of the Defense Production Act of 1950, as amended.

Report of Appointment

1. Name of appointee: Mr. Jack H. Smith.

2. Employing agency: Department of Commerce, Business and Defense Services Administration.

3. Date of appointment: November 6, 1956.

4. Title of position: Director, Copper Division.

5. Name of private employer: Wolverine Tube Division of Calumet & Hecla, Inc.

JOHN F. LUKENS,
Acting Director of Personnel.

OCTOBER 22, 1956.

Statement of Financial Interests

6. Names of any corporations of which the appointee is an officer or director or within 60 days preceding appointment has been an officer or director, or in which the appointee owns or within 60 days preceding appointment has owned any stocks, bonds, or other financial interests; any partnerships in which the appointee is, or within 60 days preceding appointment was, a partner; and any other businesses in which the appointee owns, or within 60 days preceding appointment has owned, any similar interest.

Wolverine Tube Division of Calumet & Hecla, Inc.
Bank deposits.

Dated: November 8, 1956.

JACK H. SMITH.

[F. R. Doc. 56-9476; Filed, Nov. 19, 1956; 8:49 a. m.]